ADJUDICATION ORDER IN TERMS OF SECTIONS 53 & 54

OF THE COMMUNITY SCHEMES OMBUD SERVICE ACT NO.9 OF 2011

Ref No: 518005

In the matter between:

DAVID LEWIS **APPLICANT**

And

SORALIA VILLAGE HOA **RESPONDENT**

ADJUDICATION ORDER

EXECUTIVE SUMMARY

- Relief applied for in terms of the CSOS Act:

Section 39(1)(c) & (e) In respect of financial issues-

(c) an order declaring that a contribution levied on owners or occupiers, or the way it is to be paid, is incorrectly determined or unreasonable, and an order for the adjustment of the contribution to a correct or reasonable amount or an order for its payment in a different way.

(e) an order for the payment or re-payment of a contribution or any other amount.

- Date of Adjudication Conducted: 27 October 2026.
- Name of the Adjudicator: Philani Zuma.
- Order**:** **Partially granted and dismissed.**
- No order as to costs.

INTRODUCTION

1. The Applicant is **DAVID LEWIS**, a registered owner of unit 183 in the scheme, Soralia Village, situated at 1 Wild Almond Road, Capricorn, Cape Town, Western Cape.

2. The Respondent is **SORALIA VILLAGE HOA,** a legal person incorporated in terms of the Companies Act 61 of 1973 and is a community scheme as defined in the Community Schemes Ombud Service Act 9 of 2011 ("the CSOS Act") situated at 1 Wild Almond Road, Capricorn, Cape Town, Western Cape.

3. The Parties were requested to furnish the Community Schemes Ombud Service (CSOS) with written submissions on or before the 3rd of September 2026 so the matter could be referred to adjudication.

4. This matter was then referred to adjudication on the 23rd of September 2026.

5. The Parties were further advised that they are not entitled to legal representation, but it is in the Adjudicators discretion to allow legal representation on consideration of the factors set out in section 52 of the CSOS Act.

6. This is an application for dispute resolution in terms of section 38 of the CSOS Act. The application was made in the prescribed form and lodged with the CSOS.

7. The application seeking relief in terms of section 39 of the CSOS Act, is in respect of-

Section 39(1)(c) & (e) In respect of financial issues-

(c) an order declaring that a contribution levied on owners or occupiers, or the way it is to be paid, is incorrectly determined or unreasonable, and an order for the adjustment of the contribution to a correct or reasonable amount or an order for its payment in a different way.

(e) an order for the payment or re-payment of a contribution or any other amount.

8. This matter is adjudicated in terms of the CSOS Act and Consolidated Practice Directives 1 of 2025, which provides under clause 15.102 *"If it is determined by the Adjudicator that the adjudication shall be conducted based on document filed by the parties, and the parties to the adjudication have not requested a face-to-face hearing, further written submissions, documents, and information (including evidence in the form of affidavits and photographs) may be requested by the appointed Adjudicator and/or CSOS official in terms of section 51 of the CSOS Act."* The parties were requested to make written submissions.

PRELIMINARY ISSUES

9. No preliminary issues were raised.

APPLICABLE PROVISIONS OF THE ACT

10. Section 1 of the CSOS Act defines-

- *"community scheme" as "any scheme or arrangement in terms of which there is shared use of and responsibility for parts of land and buildings, including but not limited to a sectional titles development scheme, a share block company, a home or property owner's association, however constituted, established to administer a property*

development, a housing scheme for retired persons, and a housing cooperative and "scheme" has the same meaning".

- *"dispute" as "a dispute in regard to the administration of a community scheme between persons who have a material interest in that scheme, of which one of the parties is the association, occupier or owner, acting individually or jointly".*

11. Section 38 of the CSOS Act provides-

"Any person may make an application if such person is a party to or affected materially by a dispute".

12. Section 45(1) provides-

"The Ombud has a discretion to grant or deny permission to amend the application or to grant permission subject to specified conditions at any time before the Ombud refers the application to an adjudicator".

13. Section 47 provides-

"On acceptance of an application and after receipt of any submissions from affected persons or responses from the applicant, if the Ombud considers that there is a reasonable prospect of a negotiated settlement of the disputes set out in the application, the Ombud must refer the matter to conciliation".

14. Section 48 (1) provides-

"If the conciliation contemplated in section 47 fails, the Ombud must refer the application together with any submissions and responses thereto to an adjudicator".

15. In terms of Section 50-

"The adjudicator must investigate an application to decide whether it would be appropriate to make an order".

16. Section 51 provides for the investigative powers of the Adjudicator:

"(1) When considering the application, the adjudicator may-

(a) require the applicant, managing agent or relevant person-

(i) to give to the adjudicator further information or documentation;

(ii) to give information in the form of an affidavit or statement; or

(iii) subject to reasonable notice being given of the time and place, to come to the office of the adjudicator for an interview;

(b) invite persons, whom the adjudicator considers able to assist in the resolution of issues raised in the application, to make written submissions to the adjudicator within a specified time; and

(c) enter and inspect-

(i) an association asset, record or other document;

(ii) any private area; and

(iii) any common area, including a common area subject to an exclusive use arrangement".

17. If the dispute has not been resolved through conciliation, the matter may be referred to an adjudicator. Accordingly, a certificate of non-resolution was issued in terms of Section 48(1) of the CSOS Act. The Ombud referred to the application together with any submissions and responses thereto to an adjudicator.

SUMMARY OF EVIDENCE

Applicant's submissions

18. The Applicant lodged a complaint against the Respondent concerning certain charges debited to his account, including charges described as "receipting fees" and "arrears account review" fees, together with any interest attributable to those charges.

19. The Applicant's submissions initially also referred to the Sectional Titles Schemes Management Act 8 of 2011 ("the STSMA") and its prescribed management rules. However, in his later submissions, he accepted that the Respondent is a common-

law homeowners association and that the STSMA's prescribed management rules do not govern the dispute.

20. He thereafter relied principally on the Debt Collectors Act 114 of 1998 ("the Debt Collectors Act"), the applicable Debt Collectors Regulations and tariff, the HOA's Constitution, the management agreement with Trafalgar Property Management (Pty) Ltd ("Trafalgar"), and common-law principles governing the exercise of the HOA committee's powers and duties.

21. The Applicant alleges that the disputed receipting fees were charged routinely when payments were processed and recorded on his account, rather than as fees arising from identifiable debt-collection activity undertaken in respect of a particular overdue debt.

22. He disputes that the description "receipting fee", by itself, identifies a lawful basis for the charge under the applicable debt-collection tariff. In his view, the relevant tariff does not provide for a separate fee merely because a payment is received, receipted, recorded or allocated to an account.

23. He relies in particular on item 9 of Annexure B to the Debt Collectors Regulations, which he submits permits a fee calculated at 10% of an instalment received in redemption of a debt, subject to the prescribed maximum, and does not permit an additional fee for attendance in connection with receipt or payment of that instalment.

24. The Applicant further submits that, if the Respondent contends that the receipting fees fall within item 9, it must identify the relevant payment and debt, the amount received in redemption of that debt, the calculation used to determine the fee, and the manner in which the applicable tariff limit was observed. He disputes that a recurring charge can be justified merely by describing it as an administration or receipting fee.

25. He also relies on the applicable tariff provisions concerning limits on debt-collection fees and expenses, including the overall limit he identifies under regulation 11, and

contends that the Respondent has not demonstrated how the disputed charges comply with those provisions.

26. The Applicant's contemporaneous correspondence records that, on 7 May 2026, he raised a query concerning a receipting fee. According to his subsequent email of 29 May 2026, Trafalgar requested a copy of an invoice on 8 May 2026, after which he says he received no substantive explanation before another fee was debited. The Applicant also referred to an invoice for R173.77 associated with a transaction described in his correspondence as the issuance of a R2,500 credit to Trafalgar Property Management.

27. He relied on this material in raising questions about the basis and calculation of the fees. The precise relationship between that invoice, the relevant account entries and the amounts charged is a matter addressed in his submissions and supporting documents.

28. On 2 June 2026, Leandre van de Venter, identified in the correspondence as a debt collector, explained that the receipting fee was an administration fee charged by a registered debt collector for processing and recording payments, issuing receipts, updating the account, allocating payments to debts and maintaining accounting records. The response referred to the Debt Collectors Act and the 2003 Regulations.

29. The Applicant replied on the same date, disputing that the explanation established a lawful basis for the charge in his circumstances. He stated that he had not been notified of a formal handover for debt collection and maintained that the fee appeared to have been applied routinely, rather than because of a specific collection action.

30. He requested the date of handover, notice of the handover, the resolution authorising the fee, the tariff item relied upon and the calculation of the charge. He also requested that the fee be reversed pending clarification.

31. On 4 June 2026, Claire Meredith, writing on behalf of Trafalgar, stated that levies were payable on or before the first working day of the month, with a grace period until the seventh.

32. She advised that an account not paid in full by that date was automatically considered handed over for debt collection. She referred to the management agreement, Trafalgar's registration as a debt collector and the Respondent's resolutions as the basis for the charges and declined to reverse the fee.

33. The Applicant disputed that an account's failure to be settled in full by the seventh day automatically established a valid handover for debt collection. He requested the correct Soralia-specific documents, the date and authority for the alleged handover, the tariff item relied upon and reversal of the disputed fee.

34. He also referred to clause 2.1 of the management agreement, which he understood to provide that the managing agent's charge to the HOA for collecting levies was included in the management fee.

35. The Applicant states that documents initially supplied by Trafalgar included a handover resolution relating to Solaris Place SS32/2020, which he says was a different scheme with different trustees.

36. He challenged the relevance of those documents and requested documents applicable to Soralia Village. The correspondence of 17 June 2026 reflects a further exchange in which Trafalgar maintained its position concerning automatic handover and the charges.

37. The Applicant understood the response to suggest that the trustees had changed over time and that the documents provided were nevertheless applicable. He continued to dispute the use of the Solaris Place documentation and maintained that the Respondent had not provided a satisfactory explanation of the authority for the fees charged to his account.

38. In his letter of 18 June 2026, the Applicant identified receipting fees recorded as R87.51 for 1 May 2026 and R86.26 for 1 June 2026. He challenged the basis for those charges and again argued that the applicable tariff did not contain a separately named “receipting fee”.

39. He contended that the Respondent had not demonstrated that the charges were calculated in accordance with item 9 or that the relevant payments were received in redemption of an identified debt. He also questioned whether the separate receipting charge duplicated services already covered by the management fee under clause 2.1 of the management agreement. He referred to clause 10.9 of that agreement in support of his position.

40. The Applicant also addressed an entry described as “Other Necessary Charges: Arrears Account Review”. In the letter of 18 June 2026, he initially described the 1 June 2026 arrears account review charge of R28.75 as a charge he had not previously queried and did not dispute. Later in the same letter, however, he questioned the basis for the arrears account review charge, asked which tariff item authorised it and sought its reversal.

41. In his subsequent notice of dispute dated 15 July 2026 and later submissions, he expressly challenged the charge. He submitted that the closest potentially relevant tariff provision was item 3, concerning other necessary expenses not specifically provided for, but maintained that the Respondent had not identified any actual, necessary expense or activity supporting the charge. He also disputed the repeated imposition of the charge without a sufficiently particularised explanation.

42. In the same correspondence, the Applicant referred to the arrear-letter fee and ordinary interest charged to his account, distinguishing those amounts from the charges he was contesting.

43. He stated that he did not dispute the underlying obligation to pay properly imposed levies and other ordinary account charges, nor did he seek to avoid interest lawfully payable on genuine arrears. His complaint was directed principally at the

receipting fees and arrears account review charges, and at any interest calculated on those disputed amounts.

44. He also referred to the fact that a previous managing agent had, according to his experience, charged an arrear-letter fee without imposing the same recurring receipting fees. He relied on that comparison as context for his complaint.

45. The Applicant further relied on clause 8.6 of the HOA's Constitution, which provides that the committee may hand over a debt due to the HOA to attorneys or debt collectors for collection if the debt has been outstanding for more than 30 days.

46. He contended that this provision contemplated a decision by the committee and did not support Trafalgar's stated practice of treating an account as automatically handed over merely because it had not been paid in full by the seventh day of a month.

47. He maintained that the Respondent had not identified a valid, scheme-specific authorisation for the fees charged before the resolutions on which it subsequently relied were adopted.

48. The Applicant also referred to clause 8.8 of the Constitution, which concerns the recovery of legal and collection-related costs incurred in recovering arrears. He submitted that the reference to costs "incurred" required an identifiable cost or expense associated with recovery, rather than the automatic imposition of a standard charge without proof of the underlying activity or expense.

49. He maintained that the Respondent had not shown how the recurring arrears account review charges met this requirement or fell within a prescribed tariff item.

50. On 15 July 2026, the Applicant issued a formal notice of dispute and requested a detailed explanation of the amount demanded from him. He stated that his letter of 18 June 2026 had not received a substantive response before the demand was issued.

51. His notice raised the tariff basis for the receipting fees, the basis for the arrears account review charge, the use of documents relating to Solaris Place, the calculation of the amounts claimed and the relationship between the management agreement and the separate charges.

52. He requested a full itemisation of the amount demanded, responses to the outstanding questions, confirmation that the account dispute had been recorded and clarification concerning the further threatened collection steps.

53. The Applicant referred to a letter of demand dated 15 July 2026, issued by Trafalgar under reference 500M0013008, which demanded R2,199.85. The letter stated that the account was more than two months in arrears and warned of possible credit bureau listing after 20 days, legal proceedings and further collection-related charges.

54. The Applicant's notice of dispute recorded payments of R250 on 2 July 2026, R200 on 6 July 2026 and R300 on 15 July 2026, totalling R750 by the date of his notice. He later recorded a further payment of R1,500 on 17 July 2026.

55. He contended that issuing the demand without first addressing his substantive questions was procedurally inappropriate and left unresolved the basis on which the disputed charges had been calculated. He did not, however, maintain that the existence of a dispute extinguished his underlying obligation to pay lawful levies and other proper due amounts.

56. The Applicant subsequently challenged the Respondent's reliance on a handover resolution, and an interest resolution dated 15 July 2026.

57. He submitted that resolutions adopted on that date could not retrospectively establish authority for charges already imposed in May and June 2026. He further disputed the retrospective effect of provisions purporting to ratify earlier interest, administrative or ancillary charges.

58. In his view, a resolution of the HOA could not validate a fee that was otherwise inconsistent with the Debt Collectors Act or its regulations. He also questioned the timing of the resolutions in relation to the demand issued on the same date.

59. In his reply dated 7 September 2026, the Applicant specifically disputed the tariff filed by the Respondent, contending that it was the 2020 tariff and that the amended tariff published on 6 March 2026 was applicable to the disputed charges. He referred to the 2026 tariff published in Government Gazette 54273 and provided a copy with his supporting material.

60. He submitted that item 3 prescribed an amount of R25 for qualifying other necessary expenses not specifically provided for, while item 9 provided for a fee calculated at 10% of an instalment received in redemption of debt, subject to a maximum of R610. He also relied on regulation 11 concerning the applicable overall limit.

61. The Applicant contended that the Respondent’s reliance on the earlier tariff did not establish that the charges had been correctly imposed under the tariff in force when they arose.

62. The Applicant further disputed that the account statements, merely by showing debit balances at various dates, established that the specific debt relied upon for collection purposes had remained unpaid for the required period. He referred to an account credit recorded in February 2026 and to payments made during the following months.

63. He argued that the Respondent needed to identify the particular debt allegedly in arrears, show how payments had been allocated, establish the age of that debt and identify any prior demand said to have remained unsatisfied.

64. He also pointed to discrepancies in the account entries. In particular, he stated that the May receipting fee appeared as R87.51 in one account record but as R179.52 in a consolidated ledger, and that the ledger included a reversal of R30.01 and a

correction of R30.02 on 1 August 2026. He requested an explanation and reconciliation of those entries.

65. The Applicant also relied on clause 7.6.8 of the Constitution, which addresses the HOA's authority to sue and defend proceedings and appoint legal representatives, subject to the voting requirements set out in that clause, while providing an exception for normal legal routine action to recover overdue amounts following approval by the HOA committee.

66. He argued that the provision required committee approval for routine recovery action and that the handover resolution could not lawfully confer unrestricted discretion on Trafalgar to initiate collection activity or incur legal fees and disbursements without the requisite authority.

67. He also referred to clause 7.1, which he understood to make the committee's powers subject to the express provisions of the Constitution. On that basis, he sought a finding that the handover resolution was inconsistent with the Constitution to the extent that it purported to remove or bypass the relevant committee-approval requirement.

68. In his final submissions dated 24 September 2026, following an unsuccessful conciliation process on 23 September 2026, the Applicant maintained that the distinction between routine levy administration and debt collection was material.

69. He submitted that clause 2.1 of the management agreement included the managing agent's ordinary levy-collection services in the management fee, while any additional debt-collection fee required an independent lawful basis and compliance with the applicable tariff.

70. He further contended that the Respondent had not demonstrated the necessary authority for the disputed charges in the relevant months and that the later resolutions could not retrospectively cure any deficiency in that authority.

71. He relied on the HOA's Constitution and common-law principles concerning the duties of trustees or committee members in support of his argument that the exercise of collection powers could not be delegated without proper limits or authorisation.

72. The Applicant also expressed concern that Trafalgar had a financial interest in imposing or collecting additional fees and argued that the committee should retain responsibility for decisions concerning the handover of accounts and the initiation of recovery action.

73. He relied on the sequence of correspondence, the initial provision of documents relating to another scheme, the subsequent adoption of the Soralia-specific resolutions, the unresolved questions about the applicable tariff and calculation of charges, and the Respondent's offer during conciliation to reduce certain charges by 50%.

74. The Applicant characterised these matters as supporting his contention that the charges and the process by which they were imposed were not properly justified.

75. He asked that the conciliation offer be treated as an admission concerning the charges. He also alleged that the correspondence reflected an inconsistent approach to the authority for, and calculation of, the fees.

76. In relation to the statutory basis for the fees, the Applicant referred to the Debt Collectors Act, including section 19, and maintained that a registered debt collector could recover only amounts permitted by the applicable law and tariff. He also asserted that a written, account-specific mandate was required before Trafalgar could act as a debt collector in relation to a particular debt.

77. He relied on this contention, together with clauses 8.6 and 7.6.8 of the Constitution and the management agreement, to challenge the authority for the disputed charges. In his final submissions, he sought a determination that the Respondent had failed to establish a valid mandate for the relevant collection activity and that the disputed fees should therefore be reversed.

Relief sought by the Applicant

78. The Applicant seeks the following:

    a. An order that the receipting fees charged in May 2026 (R87.51), June 2026(86.26), July 2026 (R119.90), and August 2026 (R200) and any subsequent receipting fees be reversed from the Complainant's account with immediate effect.
    b. An order that the "Arrears Account Review" charges of June 2026 (R28.75), July 2026 (R28.75), August 2026 (R28.75) and any subsequent "Arrears Account Review" fee be reversed, alternatively that Trafalgar be directed to demonstrate its basis in Annexure B.
    c. An order that any interest charged on the balance to the extent it was inflated by the above disputed charges be recalculated and reversed.
    d. An order that the account be placed in formal dispute status and that no credit bureau listing, blacklisting, or legal action be taken against the Complainant in respect of the disputed amounts while this complaint is before the CSOS; A ruling on whether Trafalgar's practice of treating levy accounts as "automatically handed over for debt collection" by the 7th of each month - without a specific creditor instruction in respect of each account - is lawful under the Debt Collectors Act 114 of 1998, and if not, an order directing Trafalgar to cease this practice in respect of all schemes under its management.
    e. An order directing Trafalgar to provide a full itemised breakdown of the R2,199.85 demanded, identifying each component and the period to which it relates; and Such further or alternative relief as the CSOS deems appropriate in the circumstances.

Respondents' submissions

79. The Respondent opposed the Applicant's complaint concerning receipting fees, arrears account review charges and related interest debited to his account.

80. The Respondent stated that it is a common-law homeowners association and not a sectional title scheme governed by the STSMA. It accordingly disputed the applicability of the STSMA's prescribed management rules and submitted that the dispute should be determined with reference to the HOA's Constitution, the applicable management agreement, the CSOS Act, the Debt Collectors Act 114 of 1998 and the regulations and tariff applicable to debt collectors.

81. The Respondent submitted that the lawfulness of an account charge depends on its underlying basis and compliance with the applicable governing documents and legislation, rather than the description assigned to it in the account.

82. It maintained that not every charge debited to the Applicant's account was necessarily a debt-collection fee and that routine levy administration should be distinguished from statutory debt-collection activity. It nevertheless accepted that each disputed charge required a lawful basis and that the fact that a charge appeared on the account did not, by itself, establish that it was recoverable.

83. In addressing the Applicant's account history, the Respondent relied on a consolidated account statement covering the relevant period. It submitted that the account had not consistently been settled in full between March and July 2026 and that debit balances had been carried forward during that period, notwithstanding payments made by the Applicant.

84. The Respondent referred to balances recorded on 24 March 2026, 30 April 2026, 26 May 2026 and 18 June 2026, as well as the balance reflected in July. It disputed the suggestion that the collection process had been triggered solely because a particular calendar date had passed and maintained that the account history had to be considered when assessing the charges.

85. The Respondent relied on a handover resolution specific to Soralia Village, dated 15 July 2026 and included as Annexure C to its response. It stated that the resolution authorised Trafalgar to act as a debt collector for the HOA and referred to the applicable tariff in Annexure B.

86. According to the Respondent, the resolution contemplated formal handover where an account had been in arrears for at least three consecutive months and remained unpaid despite a demand.

87. The Respondent relied on this resolution as part of the authority for the debt-collection arrangements applicable to the scheme.

88. The Respondent acknowledged that documents relating to Solaris Place SS32/2020 had initially been supplied to the Applicant in error. It stated that it did not rely on those documents and instead relied on the Soralia-specific handover resolution and related records included with its response.

89. The Respondent maintained that the initial documentary error did not mean that the Soralia-specific arrangements were invalid, although it acknowledged that the incorrect documents had required correction.

90. The Respondent also relied on an interest resolution dated 15 July 2026, included as Annexure D. It stated that the resolution provided for interest at 15% per annum, compounded monthly, and authorised interest to be raised on arrear levies and ancillary charges.

91. The Respondent referred to clause 8.5 of the HOA's Constitution, which provides for monthly levies payable in advance, and clause 8.11, concerning the committee's authority to determine interest on arrear levies.

92. It maintained that the interest charged to the Applicant's account was supported by the resolution. It nevertheless accepted that a resolution could not, in itself, render lawful a charge that was prohibited by applicable legislation.

93. The Respondent addressed the letter of demand dated 15 July 2026, which required payment of R2,199.85. It provided a breakdown comprising the balance carried forward after the payment reflected on 18 June 2026, the CSOS levy, domestic effluent, an arrear-letter charge, interest, the July administration levy, an arrears account review charge, a receipting fee and water charges.

94. The Respondent then deducted payments of R250 made on 2 July 2026 and R200 made on 6 July 2026. It submitted that these components reconciled arithmetically to the amount demanded.

95. The Respondent further referred to subsequent payments by the Applicant, including R300 on 15 July 2026 and R1,500 on 17 July 2026. It recorded further payments of R2,400 and R235 during August 2026 and stated that the account reflected a credit balance of R3.96 on 11 August 2026.

96. It explained that the debit balance appearing on 1 September 2026 arose from new charges posted for that month and did not represent the balance of the July demand alone. The Respondent therefore maintained that the account had subsequently been brought into credit, while distinguishing the later account activity from the disputed charges forming the subject of the complaint.

97. In relation to the receipting fees, the Respondent submitted that ordinary levy administration and debt collection were distinct functions. It maintained that a fee associated with statutory debt-collection activity should be considered separately from the managing agent’s routine administrative services.

98. It relied on Trafalgar’s role as managing agent and registered debt collector, the management arrangements with the HOA, and the handover resolution in support of its position. It did not, however, maintain that the description “receipting fee” alone established the lawfulness of each entry; rather, it accepted that the applicable tariff and the nature of the activity performed had to be considered.

99. The Respondent disputed the Applicant’s contention that all recurring charges described as receipting fees necessarily had to be reversed. It maintained that the relevant question was whether each charge was authorised and properly calculated under the applicable tariff and whether it related to a qualifying debt-collection activity. It also disputed the Applicant’s reliance on the STSMA and its prescribed management rules, given the Respondent’s status as a common-law homeowners association.

100. The Respondent's response included a copy of the Debt Collectors Regulations tariff as Annexure E. The Applicant subsequently challenged that document on the basis that it reflected the 2020 tariff rather than the amended tariff published in March 2026.

101. Regarding the "Arrears Account Review" charges, the Respondent acknowledged that the amount of R28.75 appearing in the account did not, on its own, demonstrate that the charge was lawful.

102. It stated that the charge required a basis under the applicable tariff and that, if a particular charge could not be supported by evidence of the relevant qualifying expense or activity, that unsupported charge should be reversed. The Respondent opposed the automatic reversal of all charges without individual consideration, maintaining that any adjustment should be confined to those entries that could not be justified.

103. The Respondent also addressed the Applicant's reliance on clause 2.1 of the management agreement, which the Applicant interpreted as including levy-collection services in the management fee payable to Trafalgar.

104. The Respondent's position was that routine levy administration and statutory debt collection were distinct activities and that the inclusion of ordinary collection services in the management fee did not necessarily preclude a separate fee for lawful debt-collection work. It maintained, however, that any additional charge had to be supported by the relevant agreement, resolution and applicable tariff.

105. In respect of the Applicant's complaint that his correspondence of 18 June 2026 had not received a substantive response before the letter of demand was issued on 15 July 2026, the Respondent acknowledged that its communication could have been clearer and that the incorrect documents should have been corrected sooner.

106. It did not accept that the existence of an unresolved dispute extinguished the Applicant's underlying obligation to pay levies, water and effluent charges, interest or other amounts that were lawfully due.

107. The Respondent maintained that the account could be disputed while the underlying payment obligations remained enforceable, subject to the lawfulness of the particular charges concerned.

108. The Respondent disputed the proposition that the mere existence of a complaint required all collection activity or interest accrual to cease. It maintained that a unilateral dispute did not, by itself, invalidate an otherwise lawful levy or charge. At the same time, it accepted that if a disputed principal charge were found to be unrecoverable, any consequential interest calculated on that charge would require recalculation.

109. The Respondent therefore distinguished the Applicant's challenge to particular fees from the underlying amounts that it maintained that remained payable under the HOA's governing arrangements.

110. The Respondent's account records also reflected a "Drs - Letter of Demand" entry of R28.75 that it stated was not included in the R2,199.85 demanded in the letter of 15 July 2026.

111. The Respondent explained that the demand had been calculated using the components itemised in its breakdown and the two payments of R250 and R200. It maintained that the arithmetic of the demand could be reconciled to the stated total. Its position was that this reconciliation addressed how the amount demanded had been calculated, while the lawfulness of any individual disputed charge remained a separate issue.

112. In its response, the Respondent opposed relief that would determine the legality of Trafalgar's practices across all schemes under its management. It submitted that the adjudication should be confined to the dispute between the Applicant and the HOA, the Applicant's account and the charges relevant to the complaint.

113. It also opposed a blanket prohibition on future collection activity, maintaining that lawful collection measures could still be pursued in respect of amounts properly due, subject to the applicable legislation, governing documents and tariff.

114. The Respondent opposed the blanket reversal of all receipting fees and arrears account review charges but accepted that an individual charge not supported by an applicable tariff provision or the necessary evidence should be reversed. It further accepted that interest attributable to any principal charge subsequently found to be unrecoverable should be recalculated.

115. It maintained that the account should be assessed by reference to the underlying entries and the authority for each charge, rather than by treating every charge of a particular description as automatically invalid.

116. In conclusion, the Respondent asked that the complaint not be granted in the broad terms advanced by the Applicant. It maintained that the HOA's governing documents and the Soralia specific resolutions provided a framework for levy administration, interest and debt collection, and that the account history and demand breakdown should be considered when determining the dispute.

117. It opposed a scheme wide ruling and a blanket restriction on future collection action. Its position was that only those individual charges not demonstrated to be lawful and properly calculated should be reversed, with consequential interest adjustments where necessary

Relief sought by the Respondent

118. None submitted.

EVALUATION AND FINDINGS

119. In evaluating the evidence and information submitted, the probability of the case together with the reliability and credibility of the witnesses must be considered.

120. The general rule is that only evidence that is relevant should be considered. Relevance is determined with reference to the issues in dispute. The requisite standard of proof required, as in all civil matters, is a preponderance of probabilities. This means that once all the evidence has been tendered, it must be weighed up by the Adjudicator to determine whether the Applicant has discharged

the burden of proving its case on a balance of probabilities. It involves findings of facts based on an assessment of credibility and probabilities.

121. In **Pillay v Krishna 1946 AD 946**[1], para 952- 955, the Court held:

> *"The standard of proof in a civil case is the well-known preponderance (balance) of probabilities. This requires of the party on whom the onus lies, in order to be successful, to satisfy the court that he is entitled to succeed on his claim or defence, as the case may be. Similarly, if evidence is led but the court cannot decide whether the cause of action has been established or not, the plaintiff again must fail because one of the facts essential to the cause of action would remain unproved."*

122. The dispute concerns charges debited to the Applicant's account by the Respondent, a common-law homeowners association, in circumstances where Trafalgar performed the scheme's management functions and asserted that certain charges arose from debt-collection activities.

123. The central question is not simply whether the account was in arrears, but whether each disputed charge was authorised, correctly calculated and recoverable from the Applicant under the applicable law and governing documents.

124. The Applicant initially relied on provisions of the STSMA and its prescribed management rules. He subsequently accepted that the Respondent is a common-law homeowners association and that those prescribed rules do not govern this dispute.

125. The dispute must accordingly be determined with reference to the Respondent's Constitution, the applicable management agreement, the Debt Collectors Act 114 of 1998 and the regulations and tariff applicable during the relevant period, together with the relief available under the Community Schemes Ombud Service Act 9 of 2011 ("the CSOS Act").

126. The contractual nature of the relationship between a homeowners association and its members is relevant to the interpretation of the Respondent's governing

[1] Pillay v Krishna 1946 AD 946, para 952-955.

documents. In **Mount Edgecombe Country Club Estate Management Association II (RF) NPC v Singh and Others [2019] ZASCA 30**, at paragraph 19, the Supreme Court of Appeal stated:

> *"When the [owners] chose to purchase property within the estate and become members of the Association, they agreed to be bound by its rules. The relationship between the Association and the [owners] is thus contractual in nature. The conduct rules, and the restriction imposed by them, are private ones, entered into voluntarily when an owner elects to buy property within the estate."*

127. The judgment concerned the enforceability of estate conduct rules, rather than debt-collection fees. Its relevance here is therefore limited to the principle that the parties' rights and obligations must be determined with reference to the applicable contractual and governing documents. It does not, by itself, establish that any fee is recoverable.

128. The statutory limits on an adjudicator's powers must also be observed. Section 38(3)(a) of the CSOS Act provides:

> *"(3) The application must include statements setting out—*
>
> *(a) the relief sought by the applicant, which relief must be within the scope of one or more of the prayers for the relief contemplated in section 39."*

129. In **Kingshaven Homeowners' Association v Botha and Others (6220/2019) [2020] ZAWCHC 92**, particularly paragraph 34, where the High Court confirmed that an adjudicator may refuse relief that is not provided for in section 39. The Court stated:

> *"It is clear then that the adjudicator was right to have refused to make an order that was not provided for in s 39 of the Act (cf. Shmaryahu at para 17, and Evergreen Property Investments (Pty) Ltd v Messershmidt [2018] ZAGPPHC 786 (10 October 2018); 2019 (3) SA 481 (GP)). It was within her powers to refuse the relief sought by the applicant; see s 54(1)(a) of the CSOS Act."*

130. This does not prevent the adjudicator from deciding the financial dispute properly before the Service; it requires the order to remain within the remedies Parliament has authorised.

131. The distinction is particularly important because the Applicant's original application includes both account-specific financial relief and requests for broader rulings concerning Trafalgar's practices across other schemes. Those powers must be exercised consistently with the categories of relief set out in section 39.

132. The Applicant seeks an order reversing the receipting fees charged in May 2026 in the amount of R87.51, June 2026 in the amount of R86.26, July 2026 in the amount of R119.90 and August 2026 in the amount of R200, together with any subsequent receipting fees.

133. The correspondence shows that the Applicant queried the receipting fees before lodging the complaint. On 2 June 2026, Trafalgar explained that it regarded the fee as an administration charge for processing and recording payments, issuing receipts, updating accounts, allocating payments and maintaining accounting records.

134. On 4 June 2026, Trafalgar further stated that an account not settled in full by the seventh day of the month was automatically considered handed over for debt collection. The Applicant disputed that an automatic process of this kind established a lawful basis for imposing a debt-collection fee on every payment.

135. The Respondent's position is that routine levy administration and debt collection are distinct activities. That distinction is relevant, but it does not resolve the dispute.

136. If a charge is imposed as remuneration for ordinary account administration, the Respondent must identify the contractual or other lawful basis for charging the Applicant separately for that service.

137. If it is imposed as a debt-collection fee, the Respondent must demonstrate that the charge is permitted under the applicable statutory tariff and that the requirements

for the relevant fee have been met. The description assigned to an entry in the ledger cannot substitute for that explanation.

138. Section 19(1) of the Debt Collectors Act provides:

> *"A debt collector shall not recover from a debtor any amount other than-*
>
> *(a) the capital amount of a debt due and interest legally due and payable thereon for the period during which the capital amount remains unpaid; and*
>
> *(b) necessary expenses and fees prescribed by the Minister in the Gazette after consultation with the Council."*

139. The statutory restriction is material where Trafalgar seeks to recover a charge from the Applicant in its capacity as a debt collector. The Respondent must identify the applicable tariff provision and demonstrate that the charge falls within it. Trafalgar's registration as a debt collector, on its own, does not establish that every charge it imposes is recoverable.

140. The Applicant relies on item 9 of Annexure B to the Debt Collectors Regulations, as amended with effect from 6 March 2026, which he says governs a fee calculated by reference to an instalment received in redemption of a debt. He contends that the receipting fees charged to his account were not shown to have been calculated in that manner.

141. The Respondent's Annexure E, however, is the earlier 2020 tariff, which the Applicant challenged in his reply of 7 September 2026. On the material presently identified, the Respondent has not demonstrated that the tariff attached to its response was the tariff applicable when the disputed charges arose or provided a transaction-by-transaction calculation establishing that the amounts charged complied with the applicable 2026 tariff.

142. The account records also disclose a material discrepancy in the May 2026 receipting fee. The Applicant identified the charge as R87.51, while the Respondent's account material was said to reflect R179.52, alongside a reversal of

R30.01 and a correction of R30.02 recorded on 1 August 2026. The available explanation does not adequately reconcile these figures. This discrepancy is material because the amount sought to be recovered must be identifiable and capable of verification against the relevant transaction and tariff.

143. The Respondent relies on the account's debit balances and the Applicant's payment history to support its position that collection activity was justified. Those records establish that the account carried debit balances during the relevant period, but they do not, without more, establish the correct calculation or legal basis for each receipt fee.

144. The Applicant's later payments and the credit balance of R3.96 recorded on 11 August 2026 do not extinguish the dispute about the lawfulness of charges previously debited.

145. The management agreement raises a further issue. Clause 2.1 is relied upon by the Applicant as providing that the managing agent's charge to the HOA for collecting levies is included in the management fee.

146. The Respondent contends that routine levy administration and statutory debt collection are separate services. The extract relied upon does not, without consideration of the full agreement and its fee provisions, conclusively establish that every separate collection charge amounts to double recovery.

147. Nevertheless, the Respondent has not sufficiently explained, on the material identified, how the receipting fees fall outside the services already remunerated through the management fee or otherwise qualify as recoverable charges.

148. The handover resolution dated 15 July 2026 does not resolve the issue for the earlier months. The resolution is said to contemplate formal handover where an account has been in arrears for at least three consecutive months and remains unpaid despite a demand. It was adopted after the May and June receipting fees had been charged and after the July charge had been raised on 1 July.

149. The Respondent has not demonstrated how a resolution adopted on 15 July retrospectively establishes the necessary authority for those earlier charges. Nor does the existence of a debit balance alone establish that all the requirements of the resolution were met in relation to each fee.

150. As regards the August 2026 receipting fee, the later date of the resolution means that the issue cannot be resolved solely by saying that the resolution post-dated the charge.

151. The Respondent must still demonstrate that the charge was permitted by the applicable tariff, that the relevant collection requirements were met and that the fee was correctly calculated. The material identified does not provide a satisfactory transaction-specific calculation or demonstrate the basis on which the R200 charge was determined.

152. In the circumstances, the Respondent has not sufficiently substantiated the disputed receipt fees as recoverable charges. The Applicant's request for repayment or reversal of the specified charges falls within the financial relief contemplated by section 39(1)(e) of the CSOS Act.

153. The appropriate relief is confined to the fees identified in the application and any consequential interest addressed below. The request concerning subsequent receipt fees requires separate consideration: the present record does not establish the amount or circumstances of any later fee. A blanket order invalidating every future charge, regardless of its basis or the circumstances in which it may arise, would go beyond what is necessary to resolve the proved account dispute.

154. The Applicant seeks reversal of the arrears account review charges of R28.75 for each of June, July and August 2026, together with any subsequent charges of the same description. In the alternative, he asks that Trafalgar be directed to demonstrate the basis for the charges under Annexure B to the Debt Collectors Regulations.

155. The Applicant's letter of 18 June 2026 contains an inconsistency: it initially describes the June arrears account review charge as one he had not previously queried and did not dispute, but later in the same letter questions the basis for the charge and requests its reversal. His subsequent notice of dispute and later submissions expressly challenge the charge.

156. The correspondence therefore establishes that the Applicant disputed the arrears account review fee, notwithstanding the inconsistent sentence in the 18 June letter.

157. The amount charged, R25 excluding VAT and R28.75 including VAT, corresponds numerically to the R25 amount identified by the Applicant under item 3 of the 2026 tariff. That numerical correspondence does not, by itself, establish that the charge is recoverable. The provision relied upon concerns other necessary expenses not specifically provided for.

158. The Respondent must therefore show that the amount relates to a qualifying necessary expense and identify the activity or expense for which it was incurred. A standard charge cannot be justified solely because it matches the amount stated in a tariff item.

159. The Respondent accepts that the amount alone does not prove that the charge was lawful and that an unsupported charge should be reversed. However, the material identified does not show a sufficiently particularised explanation of the expense or activity underlying each of the three charges.

160. The Respondent has not demonstrated why a separate arrears account review expense was necessary in each month, what work was undertaken, or how that work qualifies under the relevant tariff provision.

161. The Respondent's reliance on clause 8.8 of the HOA's Constitution, which concerns costs incurred in the recovery of arrears, does not remove the need to establish that the expense was actually incurred and is recoverable. The provision cannot be read as automatically validating every charge labelled an arrears account review fee.

162. In the absence of adequate evidence of a qualifying expense or another applicable basis, the charges for June, July and August 2026 have not been sufficiently substantiated.

163. The Applicant's request for repayment or reversal of those specified charges is therefore supported by the evidence presently identified. As with the receipting fees, however, the request to reverse any subsequent charge cannot be determined in the abstract.

164. Any later charge would need to be assessed on its own facts and against the tariff and governing documents applicable when it arose. The alternative request that Trafalgar demonstrate the tariff basis is addressed by the finding that the three specified charges have not been adequately substantiated.

165. The Applicant seeks recalculation and reversal of any interest charged on the account to the extent that the balance was inflated by the disputed receipting fees and arrears account review charges.

166. The Respondent relies on the interest resolution dated 15 July 2026, which provides for interest at 15% per annum compounded monthly, and on clause 8.11 of the HOA's Constitution. The Respondent also accepts that if a principal charge is found to be unrecoverable, any interest calculated on that charge should be recalculated.

167. The existence of an interest resolution does not establish that interest may lawfully be charged on an amount that was itself not recoverable. Interest must be assessed by reference to the underlying balance on which it was calculated.

168. The Applicant has distinguished the disputed charges from the underlying levy obligation and has not sought to avoid interest lawfully due on genuine arrears. That distinction is material: the finding that fees are not substantiated does not invalidate interest on all other amounts properly due.

169. The Respondent should therefore recalculate the account by removing the specified disputed charges and adjusting any interest that was calculated on those charges. The recalculation must preserve interest, if otherwise lawfully due, on the remaining valid account amounts. This relief is ancillary to the repayment or reversal of the disputed fees and falls within the adjudicator's power to make ensuing provisions under section 54(3) of the CSOS Act.

170. The Applicant seeks an order that the account be placed in formal dispute status and that no credit bureau listing, blacklisting or legal action be taken against him in respect of the disputed amounts while the CSOS complaint is before the Service.

171. The correspondence establishes that the Applicant raised questions about the charges before the letter of demand was issued on 15 July 2026. The demand threatened possible credit bureau listing after 20 days and legal action.

172. The Respondent subsequently acknowledged that its communication could have been clearer and that the incorrect documents should have been corrected sooner. These circumstances explain the Applicant's concern about further collection steps while the disputed charges remained unresolved.

173. However, the existence of a dispute does not by itself extinguish the underlying obligation to pay lawful levies and other properly due amounts, nor does the record establish that every form of collection action would necessarily be unlawful. The appropriate distinction is between recovery of the charges found not to be substantiated and recovery of other amounts that may remain lawfully due.

174. The requested order is framed as a prohibition on credit bureau listing, blacklisting and legal action during the pendency of the CSOS complaint. That is broader than an order determining whether the specified fees are payable or repayable under section 39(1)(e).

175. Section 39 does not expressly provide for a general interim moratorium on all such collection steps merely because an account is disputed. In **Kingshaven Homeowners' Association v Botha and Others**, paragraph 34, the High Court

confirmed that an adjudicator may not grant relief outside the categories provided for in section 39.

176. Accordingly, the Applicant's request for a general prohibition on credit bureau listing, blacklisting or legal action while the complaint is before the CSOS cannot be granted in the terms sought. This does not authorise the Respondent to recover the disputed charges that have not been substantiated. It means only that a general moratorium on all collection activity is not justified by the financial relief established in this matter. The specified charges and consequential interest must be dealt with in accordance with the findings above.

177. The Applicant seeks a ruling on whether Trafalgar's practice of treating levy accounts as automatically handed over for debt collection by the seventh day of each month, without a specific creditor instruction in respect of each account, is lawful under the Debt Collectors Act. If the practice is found unlawful, the Applicant asks that Trafalgar be directed to cease it in respect of all schemes under its management.

178. The correspondence records that Trafalgar stated on 4 June 2026 that an account not paid in full by the seventh day of the month was automatically considered handed over for debt collection.

179. The Respondent later relied on the Soralia-specific handover resolution dated 15 July 2026, which it described as requiring at least three consecutive months of arrears and non-payment despite a demand. Those are materially different descriptions of the process. The former suggests automatic handover by reference to a monthly payment date; the latter describes additional conditions for formal handover.

180. The Respondent has not demonstrated, by the material identified, that the conditions in the Soralia-specific resolution were met in relation to every disputed fee.

181. The Applicant's account history shows debit balances at various dates, but a running debit balance does not, without an appropriate breakdown and allocation of payments, establish the age of the debt relied upon for each collection fee. The February 2026 credit and subsequent account movements make it necessary to identify the debt, its age and the payments allocated to it.

182. The demand of 15 July 2026 is evidence of a demand issued on that date; it does not, without further evidence, establish that a prior demand had already been ignored as required by the resolution.

183. The Applicant also contends that the Debt Collectors Act requires a specific written creditor instruction for each account. The statutory provision on which he relies must be distinguished from the actual wording of the Act. Section 8 principally regulates who may perform debt-collection acts, including the registration requirement.

184. Section 19 restricts the amounts a debt collector may recover. Neither provision, on the material identified, expressly states in the terms advanced by the Applicant that a separate written mandate must invariably be issued for every individual account.

185. The absence of proof of an account-specific mandate may nevertheless be relevant to whether Trafalgar acted within the authority conferred by the HOA's governing documents, management agreement and resolutions. The statutory argument should not be taken further than the text and applicable authority support.

186. The Applicant's request for a ruling concerning the practice across all schemes under Trafalgar's management extends beyond the account and Respondent before the adjudicator.

187. The Applicant has also stated in his final submissions that he is not pursuing a scheme-wide ruling before the adjudicator and reserves any broader systemic complaint for the Council for Debt Collectors.

188. The original prayer nevertheless remains relevant to the extent that it asks for a determination of the practice described in the correspondence.

189. Under section 39(5)(a) of the CSOS Act, an adjudicator may make an order requiring a managing agent to comply with the terms of its contract of appointment and any applicable code of conduct or authorisation. That provision can support relief directed to the managing agent's obligations in the community scheme before the adjudicator. It does not confer a general regulatory power to supervise Trafalgar's practices in every unrelated scheme under its management.

190. The evidence is sufficient to conclude that the Respondent has not adequately demonstrated that the disputed fees were imposed in accordance with the handover requirements it relies upon.

191. It is not necessary, however, to decide the lawfulness of every possible automatic handover arrangement across all schemes in order to determine the Applicant's account dispute. Nor is the present record sufficient to support a blanket order prohibiting the practice in all schemes.

192. The request for a scheme-wide ruling and cessation order is therefore refused, without determining the rights and obligations of parties to other schemes not before the adjudicator.

193. The Applicant seeks an order directing Trafalgar to provide a full itemised breakdown of the R2,199.85 demanded on 15 July 2026, identifying each component and the period to which it relates.

194. The Respondent provided an itemised breakdown in its written response dated 3 September 2026. The listed components included the balance carried forward after the June payment, the CSOS levy, domestic effluent, an arrear-letter charge, interest, the July administration levy, the arrears account review charge, the receipting fee and water charges. It then deducted the payments of R250 and R200 made on 2 and 6 July 2026 respectively. The components listed reconcile arithmetically to the amount demanded of R2,199.85.

195. The provision of that breakdown substantially addresses the Applicant's request to identify the components making up the demand. However, the arithmetic reconciliation does not establish that every component was lawfully recoverable.

196. The Respondent's ledger also reflects a separate R28.75 "Drs -Letter of Demand" entry which it says was not included in the demand amount. In addition, the May receipting-fee discrepancy remains unexplained. These matters concern the accuracy and legal basis of particular ledger entries, rather than the arithmetic of the demand alone.

197. The Applicant's request for an itemised breakdown has therefore been substantially met by the breakdown supplied during the proceedings. A further order merely requiring the same breakdown to be provided is unnecessary. This does not relieve the Respondent of the obligation to implement the reversals and interest recalculation directed in this order or to ensure that the resulting account statement accurately reflects those adjustments.

198. The Applicant seeks such further or alternative relief as the CSOS considers appropriate in the circumstances. This prayer does not confer an independent power to grant relief that falls outside section 39 of the CSOS Act. In **Prag N.O. and Another v Trustees for the Time Being of the Mitchell's Plain Industrial Enterprises Sectional Title Scheme Body Corporate and Others [2021] ZAWCHC 132**, paragraph 28, the High Court explained the limits of the CSOS process as follows:

> *"If one considers the terms of the CSOS Act as a whole, and the kinds of matters in respect of which an adjudicator can make orders in terms of s 39 of the Act, they either concern regulatory/governance issues [21] pertaining to the administration of a sectional title scheme, or behavioural issues [22] pertaining to the conduct of members of the scheme inter se (which commonly would cover so-called nuisance or neighbour disputes). It was clearly not intended that the Ombud would have the power to adjudicate on delictual claims for damages, which involve weighty considerations pertaining to wrongfulness (which depend on prevailing societal norms and public policy) and fault, and the quantification and*

determination of the quantum of any damages which may have been sustained pursuant thereto, which are matters which are best left for judicial officers and Courts."

199. Although Prag concerned a claim for delictual damages, its explanation reinforces the need to confine the order to the types of relief authorised by section 39. In the present matter, the financial dispute over the recoverability of charges and consequential interest falls within the statutory framework. A general ruling governing Trafalgar's conduct in other schemes, or a broad prohibition on future collection activity, is not necessary to resolve that dispute.

200. The Applicant's concerns about the incorrect Solaris Place documents, the timing of the resolutions and the failure to provide a substantive response to the earlier correspondence are relevant to the assessment of the Respondent's explanations and the reliability of the authority it has put forward.

201. Those circumstances do not, without more, establish that the trustees acted in breach of fiduciary duties or that the conciliation offer to reduce charges by 50% was an admission that the fees were unlawful. A settlement proposal may be made to resolve a dispute without admitting liability. The financial findings above rest instead on the failure to sufficiently substantiate the specific charges under the applicable tariff and governing arrangements.

202. Having considered the parties' submissions and the material identified in the record, the appropriate relief is confined to reversing the specified receipting fees and arrears account review charges that have not been substantiated, together with recalculation of interest attributable to those charges.

203. The requests for a general moratorium on collection activity, a ruling and prohibition applicable to all schemes under Trafalgar's management, and a further breakdown already provided during the proceedings, are not granted in the terms sought.

204. This approach addresses the financial dispute before the adjudicator while preserving the distinction between the Applicant's account specific rights and

broader regulatory or contractual questions not necessary to determine that dispute.

POWERS AND JURISDICTION OF THE ADJUDICATOR

205. The Adjudicator is empowered to investigate, adjudicate and issue an adjudication order in terms of sections 50, 51, 53, 54 and 55 of the Community Schemes Ombud Service Act. The CSOS Act enables residents of community schemes including sectional title schemes to take their disputes to a statutory dispute resolution service instead of a private arbitrator or the courts. The purpose of this order is to bring closure to the case brought by the Applicant to the CSOS.

COSTS

206. There is no order as to costs.

ADJUDICATION ORDER

207. In terms of sections 53(1)(a) and 54(1)(a) of the CSOS Act, the following order is made:

    a. The application is partially granted.
    b. The Respondent is directed to reverse the receipting fees charged to the Applicant's account for May 2026 (R87.51), June 2026 (R86.26), July 2026 (R119.90) and August 2026 (R200.00).
    c. The Respondent is directed to reverse the arrears account review charges for June, July and August 2026, each in the amount of R28.75.
    d. The Respondent is directed to recalculate the interest charged on the account to the extent that it was calculated on the amounts reversed in paragraphs (b) and (c) above and credit the Applicant's account accordingly.
    e. The Respondent is directed to provide the Applicant with an updated statement reflecting the reversals and interest adjustments within 21 days of this order.

f. The Applicant's request for a general prohibition on credit bureau listing, blacklisting or legal action while the CSOS proceedings are pending is dismissed.
g. The Applicant's request for a ruling and an order prohibiting Trafalgar Property Management (Pty) Ltd from applying an automatic debt-collection handover practice across all schemes under its management is dismissed.
h. The request for a further itemised breakdown of the R2,199.85 demand is dismissed, as a breakdown was provided during the proceedings.
i. Any further or alternative relief not expressly granted above is dismissed.

RIGHT OF APPEAL

208. The parties' attention is drawn to – Section 57 of the CSOS Act of 2011 refers-

"(1) An applicant, the association or any affected person who is dissatisfied by an adjudicator's order, may appeal to the High Court, but only on a question of law.

(2) An appeal against an order must be lodged within 30 days after the date of delivery of the order of the adjudicator.

(3) A person who appeals against an order, may also apply to the High Court to stay the operation of the order appealed against to secure the effectiveness of the appeal".

SIGNED AT PRETORIA ON 02 November 2026



PHILANI ZUMA
ADJUDICATOR 13